

Thrown Out of Democracy: The Untold Story of Black Resistance at the 1838 Constitutional Convention

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Article Text

1838 Black Metropolis is trying something new. We are surfacing stories of resistance from the archives and presenting them back to you, our community, as we envision they happened. We are also writing this as historical fiction, which is a genre based on fact, but allowed to have some conjecture. In this story, we are making the assumption that the activities described in the newspapers were planned. It could be that they were not. The meeting at James Forten's house is a guess, but we think it's a high probability. Other than that, the events below are all true. Special thanks to Historian Julie Winch for providing research into the life of Thomas Butler.

January 19, 1838, 5:00 PM

A group of men are meeting at James Forten's palatial home at the corner of 4th and Lombard.

This is a protest strategy session.

Tomorrow, a convention is meeting at Musical Fund Hall. All of the legislators from all over the state have come to rewrite the Pennsylvania Constitution.

And one of them has introduced a proposal to add the word 'white' into the constitution, removing the right to vote for all Black men.

The Black community across Pennsylvania, from Pittsburgh to Philly, has been fighting this proposal in various ways - writing, speaking, protesting, petitioning - for months.

And now, it's 8:00 pm, the night before the vote.

Around the table sit a coalition that represents a microcosm of all that is the 1838 Black Metropolis.

There's Thomas Butler. No one quite knows where he came from, though most guess the Caribbean. He is a barber and creates his own perfumes. He's educated and eloquent. And independently wealthy, owning a substantial 3 story townhome at 8th and Market. Butler has ceaselessly fought for Black rights and he's in everything. He sells tickets to African Harmonic Concerts, he's a co-founder of the Philadelphia Library for Colored People, he's a leader in the Haitian emigration movement, he's a vice-president of the American Moral Reform Society.

Cocoa colored, well dressed, and smelling like a god, he slowly squints his eyes, considering what young James Forten, Jr. is saying.

James Forten, Jr. stands at the head of the polished, mahogany dining table. He is tall, and his voice is mellow and deep. He is suggesting that tomorrow, the whole group make themselves known at Musical Fund Hall.

"We know how this is going to go." He says. It's not lost to him that his father is one of the richest men in the city, a bastion of industry, a community leader. But tomorrow, he will lose his right to vote and become a certified non-citizen, powerless...but still having to pay substantial taxes.

"We are going to lose. But we must make ourselves known. We won't go down without a fight, and we must have press coverage."

Jean Pierre (JP) Burr speaks up. He is brooding. But that's his permanent look. Everybody has gotten used to it. His father was vice president of the United States. His mother was from east Asia and enslaved by his father. She had two children with Mr. Aaron Burr; J.P. and his sister. Despite his very light complexion, J.P. has proudly proclaimed that he and his family are 'Colored'. He has also made a living as a barber.

"We have the National Enquirer, I'm sure of it", he confirms.

"And the Pittsburgh Gazette!" John Vashon says, pointing his finger in the air. He's proud of that win. Vashon is energy personified. A businessman, he and AME Minister Louis Woodward are institution builders in Pittsburgh, co-founding the African Education Society. They are fresh off writing a 'memorial', a document to be sent to the legislature to argue against insertion of the word 'white' into the constitution.

They make quite a pair, this Pittsburgh team. Vashon is tall and thin, chocolate skinned and talkative. Woodward is rumored to be the son of Thomas Jefferson and an enslaved woman named Sally Hemmings. He is white presenting; quiet and intellectual.

If he didn't say he was Black, most people would assume he was white.

John Vashon didn't travel all the way from Pittsburgh for nothing. He had worked his contacts, his 'magic' as he likes to call it, and made sure that the reporter knew something was about to go down.

James Forten sits in a comfortable ruby red armchair. Robert Purvis sits next to him, quietly nodding. They exchange glances.

Forten stands. "This is the end of an era. Tomorrow we will lose. But this is also the beginning of something brand new. And we are prepared not only for this fight, but for many many others. God Speed Gentlemen."

He raises his glass. "Huzzah!"

"Huzzah!" the men all respond, joyfully, their voices reverberating through the house.

January 20, 1838

8:00 am Action 1

Musical Fund Hall sits in the middle of a bustling and thriving Black neighborhood. Black owned business line Locust street and every Sunday eight Black churches spill into Washington Square, where thousands of Black and Brown people from all over the world - Haitians, Guineans, Lenni Lenape, East Asians, Americans - meet to eat, share, sing and dance in community.

The white male legislators will not have missed this - they know they are in a Black community that is building power.

The Hall is filled to capacity. On the main floor, white men sit on long rows of pews, crammed side by side. Representative Earle is speaking, making the case that Black men should keep the right to vote.

An ally, he waves a passport from a Black man, probably Robert Purvis', and he says, "In my hand gentlemen, I have a passport, signed by John Forsyth, Secretary of State of the United States of America, certifying that the owner of this passport, a colored man, is a US Citizen! We have no right to say otherwise! I urge you to vote against this amendment."

At the start of the day John Vashon and Louis Woodward are the first in line for the viewing gallery, which is in a balcony above the open first floor.

They position themselves so they can be seen by the whole gallery. They want the representatives to see them clearly, to see the Black men who they would be disenfranchising.

And sure as day, the doorkeeper - a white man named Thomas Jefferson Becket - did as they thought he would.

Becket sees them from the floor and frowns. He makes for the stairs, quickly skipping steps up to the balcony. John Vashon has already started saying his words so that by the time Becket comes and grabs him by his elbow, he jerks his arm away from him and stands up.

Arguments on the main floor halt and all eyes are on Vashon and Woodward. Vashon is ready, "YOU HAVE NO RIGHT!" He says loudly as he tousles with Becket. "I have EVERY right to be here in the gallery."

Another doorkeeper grabs Woodward who echos Vashon. "HOW Dare you! I have a RIGHT to be here!"

Vashon can see the reporter grab his notepad and start writing. Mission accomplished - first disturbance made, observed and heard by the whole assembly, and carefully documented by the press.

He jerks his arm away from Becket and his men, and he and Vashon make their exit.

5:00 PM Action 2

The assembly is tired. Smoke wafts through the hall, and even though it's cold, the windows are open for circulation. Sweaty and disheveled, many of the legislators are now standing in groups. There have been eight hours of debate.

J.P Burr, Thomas Butler and James Forten, Jr. are standing outside on the sidewalk. The substantial front doors are closed.

Forten brings his hands to his mouth and blows to warm them. They pause for a moment, their breath creating puffs of white around them.

In sync, they walk to the door and are allowed entry. Up the stairs to the gallery, they sit in a place where they can be seen by the floor.

Like clockwork, Becket and his men see them from the floor. Maybe Becket feels even more emboldened by the fact that they are hours from a final vote where Black men will no longer be citizens. Maybe he doesn't like how beautifully dressed James Forten, jr. is. But now he is angry.

Burr and Butler stand up quickly to avoid being physically wounded by Becket and his men, but Forten stays seated.

"You have to leave!" Becket yells. Burr and Butler stand and walk out. James Forten, jr. continues to watch the floor, his eyes set and determined.

Becket leans in closer to Forten, nearly spitting in his face. "MOVE!" Becket knows who he is - the rich young son of James Forten is well known all over the city. He knows that Forten has friends in high places. But Forten's insolence is pushing his boundaries.

"I SAID MOVE", Becket yells, spitting in Forten's face. Forten sinks deeper into the chair, wiping the spit from his face. Reporters have all whipped out their notebooks and are furiously writing. All eyes are on this interaction.

Becket and his men grab Forten's arms and he goes limp. As the whole assembly watches, they drag James Forten, Jr. out of his seat, down the hall, and down the flight of stairs.

Forten makes one last attempt to stay in the building, flinging his arms against the door, forcing Becket and his men to push him out the door, where he tumbles down the front steps into the cold.

Forten can hear them slamming and locking the door behind him.

Bruised and hurt, he feels the hands of his people pull him up. Burr's stern nod tells him he has done well.

Together this group of freedom fighters walks into the cold night, across the familiar and welcoming space of the ancestors that is Congo Square.

Epilogue

This was an important galvanizing moment for the Black community.

The convention voted 77 - 45 to insert the word 'white' into the Pennsylvania Constitution. Later that year, the people of Pennsylvania ratified the constitution by a narrow margin, less than 1500 votes, 113,971-112,759. The right to vote was restored 32 years later by the passage of the 15th Amendment in 1870. Even then, whiteness was not officially removed as a pre-requisite to vote until 1873.

After this, James Forten, Jr. sued Becket, ensuring that a document of his treatment was entered into legal record, something that would stand the test of time.

And while the Black community was disenfranchised, the community continued to build. Focus turned to keeping the pathway to emancipation open for oppressed people to escape bondage and find a new start in Philadelphia. And in this way they created the cracks in the foundation of oppression that eventually split wide open.

To learn the details of, and to see our academic sources for the 1838 Civil Rights movement, see our timeline, read the reports, and learn how the community continued to build.

Questions to Think About:

Why do you think this group wanted to take such public protest actions?

We've assumed that these actions were planned. We could be wrong. Do you think these actions were planned? Why or why not?

Many histories of the Forten family focus on their very public extraordinary status. But here we see a cross-class coalition of ordinary people including two barbers, a businessman, a minister. How do you think socio-economic differences affected this group and the choices they made?

Images

- AI image of the strategy meeting on 1/19/1838 at James Forten's House — https://static.wixstatic.com/media/af048d_33e8d684a1e848b0abdc07518166feb1~mv2.png
- AI imagining of Thomas Butler outside his home and barber shop at 8th and Market — https://static.wixstatic.com/media/af048d_851eec1a33a943e3b7fce37c9f7ea27e~mv2.png
- Portrait of one of the Forten brothers; historians are unclear if this is Robert or James — https://static.wixstatic.com/media/af048d_32d6693b3f9345138e68a143f3ef9793~mv2.webp
- Image of JP Burr — https://static.wixstatic.com/media/f61430_c82feb4a13994ff7a487ea319839c10d~mv2.jpeg
- Image of John Vashon — https://static.wixstatic.com/media/af048d_3ce2dc77ac0d4c36af96353af513a29e~mv2.jpg
- Image of Louis Woodson — https://static.wixstatic.com/media/af048d_0e98c31a06c6490ba84742dc96bf1bdc~mv2.jpg
- Image of Musical Fund Hall — https://static.wixstatic.com/media/af048d_e2306667af4b4da78e3649ef09853507~mv2.jpg
- Interior of Musical Fund Hall. 1895 — https://static.wixstatic.com/media/af048d_bd2a0bc56cf249a482bfe9eda1bee74a~mv2.jpg
- AI Image of John Vashon and Louis Woodson on January 20, 1838 — https://static.wixstatic.com/media/af048d_ea0fd9dc5c3c4ccf9dcb4311663fa8a9~mv2.jpg
- AI Image of James Forten, Jr. protesting — https://static.wixstatic.com/media/af048d_49c51f8d395f408da9a7860c19d252b3~mv2.png

- Ai image of returning home after protest on 1/20/1838 —
https://static.wixstatic.com/media/f61430_36cc435deef041789a8b70cec6bf438d~mv2.jpg
- Musical Fund Hall today — https://static.wixstatic.com/media/f61430_768036b84da7429a98875d04bec64827~mv2.jpg
- The National Enquirer and Constitutional Advocate for Universal Liberty —
https://static.wixstatic.com/media/af048d_448aa332100547eb8b8911027a9d9c0a~mv2.png
- The Pittsburgh Gazette, January 25, 1838 —
https://static.wixstatic.com/media/af048d_9bea1508abc44c099b29984b62d83ca2~mv2.png

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